

ACME SUPPLY AGREEMENT
Document ID: EVAL-CONTRACT-001

Section 1. Parties

Buyer: Northwind Retail LLC. Supplier: Blue Harbor Components Ltd.

Section 2. Delivery

Supplier must deliver conforming goods to Buyer's Shanghai warehouse on or before the delivery date stated in each purchase order.

A delivery is late if the goods arrive more than five business days after the applicable delivery date.

Section 5. Payment

Marker: EVAL-C-5.1.

Buyer must pay undisputed invoices within 30 calendar days after receiving a valid invoice.

Disputed invoice amounts may be withheld until the dispute is resolved in writing by both parties.

Section 8.1 Termination for Convenience

Marker: EVAL-C-8.1.

Either party may terminate this agreement for convenience by giving at least 30 days' prior written notice to the other party.

Termination for convenience does not waive payment obligations that accrued before the effective termination date.

Section 9. Warranty

Marker: EVAL-C-9.1.

Supplier warrants that delivered goods will conform to the specifications for 12 months after acceptance.

Buyer's exclusive remedy for breach of this product warranty is repair, replacement, or refund of the affected goods.

Section 12.2 Liquidated Damages

Marker: EVAL-C-12.2.

If Supplier delivers goods more than five business days late, Supplier must pay liquidated damages equal to 0.5% of the delayed shipment value for each day of delay.

Liquidated damages are capped at 10% of the delayed shipment value.

Payment of liquidated damages does not limit Buyer's right to reject nonconforming goods.

Section 14. Confidentiality

Marker: EVAL-C-14.1.

Each party must protect the other party's confidential information using reasonable care and may use it only to perform this agreement.

The confidentiality obligation survives for three years after termination.

Section 16. Records and Audit

Marker: EVAL-C-16.1.

Supplier must maintain complete delivery, testing, and invoice records for two years after final payment.

Buyer may audit those records once per calendar year on 10 business days' notice.

Section 18. Governing Law

This agreement is governed by the laws of the State of New York, excluding conflict of laws rules.

The parties consent to exclusive venue in the state or federal courts located in New York County, New York.